

ARIZA v LAKESIDE VENTURES, LLC, et al

22CV46059

**PLAINTIFF'S MOTION TO VACATE PRELIMINARY
INJUNCTION
AND ENTER NEW PROPERTY MANAGEMENT ORDER**

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") The factual and procedural history of this lengthy dispute has been set forth in detail in multiple rulings. The following is relevant to the instant motion.

On January 19, 2024, the Court granted a motion for preliminary injunction filed by Defendants Scott Nordyke ("Nordyke") and Arthur Trillo ("Trillo") as against Helen Ariza ("Plaintiff.") Pursuant to that ruling, the Plaintiff was ordered to refrain from representing that she was an owner in the Mobile Home Park, had authority to collect rents, to evict tenants, to make alterations to the Park, to incur debts related to the Park, or to solicit tenants to file complaints against the Park.

On April 4, 2025, the Court denied Plaintiff's first motion to vacate the preliminary injunction, finding that Plaintiff provided no facts or law that would authorize the Court to vacate the injunction based on her allegations.

Now before the Court is Plaintiff's second motion to vacate the preliminary injunction.

Pursuant to Code of Civil Procedure section 533, a court may "modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted . . . or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order." (CCP § 533.)

Plaintiff arguably makes three contention that could qualify as "changed circumstances" for purposes of vacating the preliminary injunction. First, her contention that at the time the Court issued the preliminary injunction it was unaware that Nordyke and Trillo were not real estate agents. (Mtn p. 6.) Plaintiff cites to California Business & Professional Code Section 10131 which sets forth the definition of a "real estate broker." Plaintiff takes specific issue with the Code's provision that defines a real estate broker as one who collects rents. (*Id.*, subd (b).) However, section 10131.01 specifically excludes the

manager of a trailer or auto park from the provisions of section 10131. Thus, this does not provide any grounds for vacating the preliminary injunction.

Plaintiff secondly argues that Nordyke is in violation of California Civil Code Section 890 which defines the practice of “rent skimming” as “using revenue received from the rental of a parcel of residential real property at any time during the first year period after acquiring that property without first applying the revenue or an equivalent amount to the payments due on all mortgages and deeds of trust encumbering that property.” (Cal. Civil Code 890(a)(1).) While Plaintiff alleges that Nordyke is improperly placing rental funds into a personal bank account, she fails to provide a scintilla of evidence as to this fact, nor any legal argument as to how this constitutes rent skimming. Accordingly, Plaintiff’s reliance on this code provision does not provide grounds for vacating the preliminary injunction.

Finally, Plaintiff cites SB 1037 for the proposition that this law (passed in January of 2025) allows for increased civil penalties for housing code violations. However, this Code provision allows for such penalties *against local governments* for violating housing regulations. It has nothing to do with the operation of a private mobile home park.

To the extent that Plaintiff is arguing that the “ends of justice” require vacating the preliminary injunction, Plaintiff fails to provide legal or factual support for this argument. Plaintiff continues to allege various issues with the safety or cleanliness of the mobile home park but does not overcome the Court’s previous finding that her allegations are largely unsupported and did not (and do not) overcome the Defendants’ evidence showing the harm they will suffer if the injunction was not granted (and maintained).

Accordingly, Plaintiff’s motion to vacate the preliminary injunction currently in place is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling is required.

LUJAN, et al v SANDHU, et al

23CV47054

**MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF
ALFONSO LUJAN**

Attorney Brian Davalos moves to be relieved as counsel of record for plaintiff Alfonso Lujan. Counsel's declaration meets the statutory requirements.

Accordingly, Counsel's motion to be relieved is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order.

Additionally, in the interests of justice, **the Mandatory Settlement Conference is continued from December 1, 2025 to February 23, 2026, at 8:30 a.m. in Dept. 2.**